

Arvindkumar vs Vandanaben on 6 September, 2010

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Bench: K.M.Thaker

Gujarat High Court Case Information System

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SCA/10388/2010 3 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL
CIVIL APPLICATION No. 10388 of
2010

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ARVINDKUMAR
JOITARAM PATEL - Petitioner(s)

Versus

VANDANABEN
D/O KANTILAL BHAICHANDAS PATEL - Respondent(s)

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Appearance :
MR
HARSHAD K PATEL for
Petitioner(s) : 1,
None for Respondent(s) :
1,

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CORAM

:

HONOURABLE

MR.JUSTICE K.M.THAKER

Date :
06/09/2010
ORAL
ORDER

Present petitioner has brought under challenge order dated 28th January, 2010 passed below Exh.4 application in H.M.P.No.3 of 2009 by the learned trial Court, which reads thus:-

1. The applicant has filed the present application requesting that the opponent may be directed to pay Rs.5,000/- towards interim alimony and Rs.5,000/- towards costs i.e. opponent may be directed to pay Rs.10,000/- p.m. U/Sec. 24 of the Hindu Marriage Act. The opponent has filed reply to this application of the applicant is not true and correct, as it is not tenable at law, as applicant is earning a handsome amount and as the applicant is not entitled to relief prayed for, the application of the applicant is rejected with costs and compensatory costs may be awarded to her.

The applicant has filed Counter Affidavit at Ex.9.

Heard L.A. for both the parties.

2. Here it is question of evidence to know the income of the applicant as well as opponent. According to provisions of Sec. 24 of the Hindu Marriage Act. As the applicant is not entitled to interim alimony from the opponent. Hence, this Court pass following order.

ORDER It is hereby ordered that this application is rejected.

No order as to costs.

The impugned order dated 28.01.2010 is passed below application Exh.4, which was filed by present petitioner i.e. husband. The petitioner husband claimed maintenance in the sum of Rs.5,000/- from the opponent wife.

It is not in dispute that the petitioner and his wife, opponent herein, have two children and that the children are staying with their mother i.e. the wife of present petitioner.

The petitioner husband has filed H.M.P. No.3 of 2009 praying for restoration of conjugal rights. During the pendency of the said H.M.P. No.3 of 2009, the petitioner husband also filed application (Exh.4) dated 09.01.2009 and prayed for interim maintenance in the sum of Rs.5,000/-.

The opponent wife filed common reply to the application Exh.9 (for restoration of conjugal rights) and application Exh.4 (praying for maintenance) wherein, the opponent wife denied the allegations

made by the petitioner husband about her income. In her reply, she, while denying the allegations by the petitioner husband, averred that her husband has independent source of income (10 Bigha agricultural land) including agricultural income.

She also claimed that the children are staying with her and she bears the expenses of their education. She also bears the burden of rent (Rs.3,000/- p.m.) of the premises where she and the children are staying and also bears the burden of day-to-day regular expenses and that therefore, the claim made by the petitioner husband is not justified.

Having regard to the averments made in the application Exh.4 by the petitioner husband and in the common reply made by the opponent wife, learned trial Court passed the impugned order that the application cannot be granted without recording evidence about income. This apart, in view of the averments made by the opponent wife in her reply, which do not appear to have been denied by the husband, it appears that the petitioner husband has failed to make out any case for any order of interim maintenance in his favour without any evidence being recorded with regard to the income or for disturbing the impugned order.

Any case for interference with the impugned order is not made out. Hence, the petition fails and the same is rejected.

[K.M.Thaker, J.] kdc